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IN THE DISTRICT COURT OF APPEAL OF FLORIDA

THIRD DISTRICT

CASE NO. 3D-26

AMAISEM HOLDINGS GROUP, LLC. d/b/a

AVANA PLASTIC SURGERY,

Petitioner/Defendant

v.

DAMICEL SALAZAR RIVAS

Respondent/Plaintiff

PETITION FOR WRIT OF CERTIORARI FROM THE 11TH JUDICIAL CIRCUIT IN AND FOR MIAMI-DADE COUNTY, FLORIDA
CASE NO.: 2022-024330-CA-01

PETITION FOR WRIT OF CERTIORARI

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INTRODUCTION

Petitioner/Defendant, Amaisem Holdings Group, LLC. d/b/a Avana Plastic Surgery, (hereinafter referred to as "Petitioner"), pursuant to Rule 9.100, Florida Rules of Appellate Procedure, respectfully files this Petition for Writ of Certiorari ("Petition")[1], and requests that this Court exercise its certiorari jurisdiction to quash the lower court's September 14, 2026 Order granting Plaintiff's Motion to Strike Defendant's Defenses for Failure to Comply with Statutory Presuit Obligations (hereinafter the "Order").

In Plaintiff/Respondent's, Damicel Salazar Rivas (hereinafter referred to as "Respondent"), Motion to Strike Defendant's Defenses for Failure to Comply with Statutory Presuit Obligations (hereinafter "Motion"), the Respondent contended that the Petitioner failed to comply with the presuit requirements of Chapter 766, Florida Statutes, by not timely responding to a records request, and a Notice of Intent to Initiate Litigation. The lower court agreed, struck all of Petitioner's defenses, and ordered that the case proceed to trial solely on the issue of damages.

[1] Petitioner is contemporaneously filing an Appendix with relevant records. The symbol "A._" refers to the Appendix number and the symbol "A._Ex._" refers to the Appendix number and internal exhibit number corresponding to the designated Appendix.

This action arises out of a medical negligence claim against Algird R. Mameniskis, M.D. (hereinafter “Dr. Mameniskis”) and Petitioner. Respondent reached a full settlement with and dismissed the primary alleged tortfeasor, Dr. Mameniskis. Respondent’s remaining counts against Petitioner are entirely derivative, alleging vicarious liability for the acts of Dr. Mameniskis.

The lower court’s ruling departs from the essential requirements of law by imposing the ultimate sanction of striking Petitioner's defenses under Chapter 766 and directing that the case proceed on damages alone. The Order effectively operates as a liability default on Respondent’s remaining claims, which are based exclusively upon vicarious liability for Dr. Mameniskis' alleged negligence. Though Respondent settled her claims against the physician, the settlement does not establish negligence. Proving the underlying tortfeasor’s negligence is a requirement to Respondent’s derivative claims against Petitioner. The lower court’s Order relieved Respondent of proving her claim(s) without separate adjudication of liability, depriving Petitioner the opportunity to contest such throughout the remaining proceedings. This represents a departure from the essential requirements of law, causing irreparable harm to Petitioner, by being denied protections of the Medical Malpractice Act.

For the reasons set forth in greater detail, *infra*, this Court should quash the lower court's Order and remand the matter with instructions to enter an Order denying the Respondent's Motion.

BASIS FOR INVOKING JURISDICTION

This Court has jurisdiction to review the Order pursuant to Florida Rules of Appellate Procedure 9.030(b)(2)(A) and 9.100, and Article V, Section 4(b) of the Florida Constitution. Certiorari review is available where a nonfinal order (1) departs from the essential requirements of law, (2) results in material injury for the remainder of the proceedings, and (3) causes harm that cannot be adequately remedied on postjudgment appeal. *Univ. of Fla. Bd. of Trustees v. Carmody*, 372 So. 3d 246, 252 (Fla. 2023); *Reeves v. Fleetwood Homes of Fla., Inc.*, 889 So. 2d 812, 822 (Fla. 2004); *Fassy v. Crowley*, 884 So. 2d 359, 363 (Fla. 2d DCA 2004).

Although nonfinal orders are generally not reviewable by certiorari, the Florida Supreme Court has recognized that granting certiorari relief is appropriate to implement legislatively adopted policy concerning prerequisites which must be followed before proceeding with certain claims. *See, e.g., Globe Newspaper Co. v. King,* 658 So. 2d 518 (Fla. 1995). This Court may accept certiorari jurisdiction to review where the order departs from the essential requirements of law, causes a material injury to the

petitioner and effectively leaves no adequate remedy at law. *See Holmes Regional Medical Center, Inc., v. Dumigan,* 151 So.3d 1282 (Fla. 5th DCA 2014)*; see also Kissimmee Health Care Assoc. v. Garcia,* 76 So.3d 1107 (Fla. 5th DCA 2011)*; Fassy v. Crowley,* 884 So.2d 359, 362-364 (Fla. 2d DCA 2004).

In *Univ. of Fla. Bd. Of Trs. v. Carmody*, 372 So. 3d 246 (Fla. 2023), the Florida Supreme Court reaffirmed the requirements for obtaining certiorari relief while emphasizing that interlocutory review of nonfinal orders is generally limited to those categories expressly enumerated in Florida Rule of Appellate Procedure 9.130. The Court recognized the limited availability of certiorari review involving the presuit requirements of the Medical Malpractice Act, acknowledging that the Act is intended to prevent meritless litigation and facilitate the early settlement of meritorious claims. *Id.* at 252 (citing *Williams v. Oken*, 62 So.3d 1129, 1133–34 (Fla. 2011)).

The Court further clarified that certiorari is not available merely to correct legal or factual errors or to revisit determinations concerning the sufficiency of the evidence but remains available where the challenged ruling "amounts to a violation of a clearly established principle of law resulting in a miscarriage of justice." *Id.* at 254, citing *Oken*, 62 So. 3d at 1136-37. Accordingly, although certiorari is not available to review every nonfinal order

involving medical malpractice presuit compliance, it may be available to ensure that the procedural requirements imposed by Chapter 766, Florida Statutes, have been satisfied. *Carmody*, 372 So. 3d at 253–54.

Further, as recognized by the Florida Supreme Court, the imposition of the ultimate sanction requires consideration of whether lesser sanctions would adequately address the misconduct, particularly where the noncompliance is attributable to counsel rather than the litigant. *Kozel v. Ostendorf*, 629 So. 2d 817, 818–19 (Fla. 1993). The lower court's Order violates the clearly established principles recognized in *Kozel*, requiring consideration of the circumstances surrounding attorney misconduct and the availability of lesser sanctions before striking a party's pleadings. *Id.* at 818. This Court has previously held that striking a physician's pleadings for ignoring a presuit records request and notice of intent is excessive where the physician later corroborates his defense with an expert affidavit, *De La Torre v. Orta*, 785 So. 2d 553, 555-56 (Fla. 3d DCA 2001).

This Court has also recognized that extraordinary sanctions may warrant certiorari review when their consequences cannot be adequately remedied on appeal. In *Ross Dress for Less Virginia, Inc. v. Castro*, 134 So. 3d 511 (Fla. 3d DCA 2014), this Court exercised certiorari jurisdiction and quashed an order striking the defendants' pleadings, entering defaults, and

imposing additional sanctions, finding irreparable harm not correctable on direct appeal. Despite *Ross Dress* involving discovery violations, punitive damages, and additional sanctions, it shows that extraordinary sanctions establishing liability may warrant immediate review. The lower court's Order in the present case that the action proceed on damages only essentially imposes a liability default on Respondent's exclusively derivative claims.

Petitioner seeks review of the lower court's September 14, 2026 Order striking its defenses in their entirety. At the time of the hearing of the Motion, the only remaining claims against Petitioner were exclusively derivative of the alleged medical negligence of Dr. Mameniskis, who previously settled with Respondent and was dismissed from the underlying action. Such settlement did not constitute an admission or judicial determination of negligence, nor did it establish the requisite relationship for imposing vicarious liability upon Petitioner. Absent a valid adjudication of liability, Respondent must still establish the physician's negligence, causation, and the legal basis for holding Petitioner vicariously liable.

Respondent's Motion sought to strike Petitioner's affirmative defenses and Motion to Dismiss, or alternatively, the imposition of other appropriate sanctions. However, the lower court went beyond the expressly requested relief by directing the matter proceed solely on damages, essentially

adjudicating liability without expressly striking Petitioner's entire responsive pleading, entering a default, or otherwise determining the essential elements of Respondent's remaining claims. The striking of affirmative defenses, standing alone, does not establish allegations otherwise denied or relieve Respondent of her burden of proving liability. Accordingly, the lower court's Order, exceeds the permissible scope and effect of the sanction imposed and improperly excludes adjudication of the underlying negligence and derivative liability, as more fully discussed below.

Furthermore, the lower court departed from the essential requirements of law by imposing this extraordinary sanction without adequately considering the applicable statutory framework, Petitioner's subsequent compliance, the exclusively derivative nature of the remaining claims, and the availability of lesser sanctions. The lower court also relied upon disputed findings of intentional misconduct without an adequate evidentiary foundation, as no witnesses testified and no exhibits were marked or admitted into evidence at the hearing. These deficiencies are particularly significant given the intervening presuit proceedings involving the alleged active tortfeasor (Dr. Mameniskis), the subsequent settlement and dismissal of Dr. Mameniskis, and the stay of the underlying litigation, which was not formally lifted until November 12, 2025. The resulting injury to Petitioner is

substantial, as Petitioner is prevented from proceeding to trial on disputed issues.

The harm to Petitioner is material and irreparable, extending beyond the ordinary expense of trial. The lower court imposed the ultimate sanction without the findings required under *Kozel* and directed that the case proceed to trial solely on damages, despite the absence of any adjudication establishing the underlying negligence or Petitioner's vicarious liability. Petitioner is therefore deprived of the opportunity to contest liability before judgment is entered, notwithstanding its verified medical expert opinion corroborating its defenses. (A.4, Ex.B).

To warrant certiorari relief, a departure from the essential requirements of law must extend beyond ordinary legal error and constitute a violation of a clearly established principle of law resulting in a miscarriage of justice. *See Combs v. State*, 436 So. 2d 93, 95–96 (Fla. 1983); *Fassy v. Crowley*, 884 So. 2d 359, 363–64 (Fla. 2d DCA 2004). Florida courts have recognized that certain procedural protections under Chapter 766 cannot be meaningfully restored after the litigation they were intended to govern has already taken place. *See Fassy v. Crowley*, 884 So. 2d 359, 363 (Fla. 2d DCA 2004); *Parkway Bank v. Fort Myers Armature Works, Inc.*, 658 So. 2d 646, 649 (Fla. 2d DCA 1995). Although those cases concerned presuit pre-requisites rather

than sanctions, the same concern arises here in that the Order effectively operates as a default on liability, treating the physician's negligence, and the legal relationship necessary to establish Petitioner's vicarious liability as established without ever having been adjudicated.

For these reasons, as further developed below, this extraordinary sanction and its effect on the remaining proceedings constitute material and irreparable injury warranting immediate certiorari review.

STATEMENT OF THE CASE AND FACTS

This is an action for medical negligence commenced by Respondent, DAMICEL SALAZAR RIVAS ("Respondent" or "Rivas"), against Petitioner, AMAISEM HOLDINGS GROUP, LLC d/b/a AVANA PLASTIC SURGERY ("Petitioner" or "Avana"), and co-defendant ALGIRD R. MAMENISKIS, M.D. ("Dr. Mameniskis"), concerning an elective surgical procedure performed on February 2, 2022.

On December 22, 2022, Rivas filed the underlying Complaint alleging that she sustained substantial injuries arising from the February 2, 2022 procedure and subsequent treatment. (A.1). The Complaint asserted four (4) counts: Count I for medical negligence against Dr. Mameniskis; Count II against Avana for vicarious liability based upon actual agency; Count III against Avana for vicarious liability based upon apparent agency; and Count

IV against Avana for vicarious liability based upon an alleged joint venture. Rivas did not assert a separate count of independent medical negligence against the Petitioner, and each count against it was predicated upon the physician's alleged negligence. (A.1).

After an Order was entered denying its original Motion to Dismiss, Petitioner filed its Answer and Affirmative Defenses on July 22, 2024, expressly denying the substantive allegations of medical negligence and causation asserted against Dr. Mameniskis, as well as the allegations supporting the purported agency and joint venture relationships. (A.2). These denials were separately plead from Petitioner's twenty-two (22) affirmative defenses, and the allegations of Dr. Mameniskis' negligence and the existence of an agency or joint venture relationship necessary to impose vicarious liability remained disputed.

Prior to commencement of litigation, Respondent requested a copy of her medical records pursuant to Section 766.204, Florida Statutes on or around June 14, 2022 via mail. (A. 1 at ¶ 11). Thereafter, Rivas served a Notice of Intent to Initiate Litigation for Medical Malpractice on or about August 11, 2022, pursuant to Section 766.106, Florida Statutes. Petitioner did not timely respond to the Notice of Intent or otherwise complete the

requested presuit investigation within the presuit period. (A. 1 at ¶¶ 12-15; A. 1 Ex. B).

During the subsequent hearing on the Motion to Strike, Petitioner's counsel acknowledged receiving both the medical records request and Notice of Intent and accepted responsibility for the failure to timely respond. Counsel explained that the omissions resulted from an inadvertent oversight and, upon discovering the omission, counsel contacted Rivas' counsel to address the outstanding obligations and discuss potential resolution of the claims. (A.6 at 10:15-12:11).

Rivas commenced litigation on or around December 22, 2022 and effectuated service upon Petitioner around January of 2023. Following commencement, on January 17, 2023, Petitioner's counsel contacted Rivas' counsel regarding the original presuit noncompliance, and the parties expressed a willingness to discuss potential remedial measures. Later that same day, counsel for Petitioner e-mailed the requested medical records to Rivas' counsel. During the hearing on Respondent's Motion, counsel for Petitioner explained the initial failure to respond was counsel's oversight, not Petitioner's intentional misconduct. However, Petitioner e-mailed Rivas' counsel the requested medical records in January of 2023, less than a month after she filed the underlying action. (A.6 at 32:1-33:8).

The parties thereafter participated in litigation, discovery, and settlement discussions, including mediation conducted on February 26, 2025, which did not resolve the claims. On March 14, 2025, Respondent filed her Motion to Strike Defendant's Defenses for Failure to Comply with Statutory Presuit Obligations. Specifically, paragraph 33 of the Motion requested that the lower court strike Petitioner's affirmative defenses or impose other appropriate sanctions, including attorneys' fees and costs. The Motion's "WHEREFORE" clause likewise requested the striking of defenses and Motion to Dismiss, or alternatively, other reasonable or appropriate sanctions. The Motion did not request entry of a liability default, striking Petitioner's *entire* responsive pleadings, or request trial on damages. (A. 3).

Subsequently, on March 24, 2025, Dr. Mameniskis moved to stay the underlying action to complete the statutory presuit investigation process. Following a hearing on April 2, 2025, the lower court entered an Order on April 3, 2025, staying the action for ninety (90) days to permit Dr. Mameniskis to complete presuit and vacating the remaining pretrial deadlines. (A.7). During the renewed presuit proceedings, Petitioner's counsel reached out to counsel for Respondent and asked to be included so that all claims arising from the same underlying action could be resolved together. Respondent's

counsel declined and proceeded with the renewed presuit process solely as to Dr. Mameniskis. (A.4 at ¶ 4; A.6 at 15:10-17).

On September 12, 2025, Respondent filed a Notice of Settlement reflecting the resolution of her claims against Dr. Mameniskis, while expressly stating that the action would continue against Avana. (A.8). Although the ninety (90) day presuit period had seemingly concluded, the stay was not formally lifted until November 12, 2025, when the lower court granted Respondent's Motion to Lift Stay, in part, and expressly directed that the case proceed against this Petitioner. (A.9). Following the physician's settlement and dismissal, Petitioner remained the sole Defendant, with the derivative claims in Counts II, III, and IV remaining.

Approximately twenty (20) days after the lift of the stay, on December 2, 2025, Petitioner served presuit discovery responses to Respondent's presuit discovery requests. (A.4 at ¶ 5; A.4, Ex.A). Petitioner filed and served its Response in Opposition to the Motion acknowledging the initial failure to timely comply with the statutory presuit requirements pursuant to counsel’s oversight. (A.4). Petitioner opposed the striking of its defenses as an excessive and disproportionate sanction. (A.4). Petitioner emphasized its subsequent compliance, the intervening presuit proceedings involving Dr. Mameniskis, the physician's settlement and dismissal, the exclusively

derivative nature of the remaining claims, and the availability of lesser sanctions. In its denial of the claim, Petitioner provided a corroborating written medical expert opinion from George Pope, M.D., dated July 29, 2026, which was served upon Respondent on August 3, 2026, prior to the hearing on Respondent's Motion. (A.4, Ex.B). Petitioner further cautioned that striking its defenses could effectively operate as a default judgment on liability because the only remaining claims depended upon Dr. Mameniskis' alleged negligence. (A.4 at ¶¶ 9, 13-16; A.6 at 19:19-22, 38:14-25).

Additionally, Petitioner argued that Section 766.106(3)(c), Florida Statutes, expressly provides that failure to respond to a Notice of Intent within ninety days constitutes a deemed rejection of the claim. Petitioner further distinguished the discretionary sanctions authorized by Section 766.106(6) and (7) from the mandatory language of Section 766.206(3), applicable to a noncompliant response mailed by a defendant rejecting a claim. (A.4, at ¶¶ 16-18). Relying upon *De La Torre v. Orta*, 785 So. 2d 553 (Fla. 3d DCA 2001), and *McPherson v. Phillips*, 877 So. 2d 755 (Fla. 4th DCA 2004), Petitioner argued that striking defenses constitutes an extraordinary sanction requiring consideration of the particular circumstances, the prejudice attributable to the noncompliance, subsequent remedial measures, and the availability of lesser sanctions. (A.4 at ¶¶ 19-27).

Petitioner emphasized that Respondent received the medical records in January 2023, that the parties participated in litigation and mediation, that Dr. Mameniskis subsequently completed the statutory presuit process and settled, and that Petitioner furnished responses to presuit discovery and medical expert corroboration. Accordingly, Petitioner requested that the lower court deny Respondent's Motion to Strike or, alternatively, impose a narrowly tailored sanction addressing only those incremental expenses demonstrated to have resulted from the original presuit noncompliance. (A.4 at ¶ 39).

On August 6, 2026, the lower court conducted a hearing on Respondent's Motion. During the hearing, counsel for Petitioner acknowledged responsibility for the original oversight, explained the subsequent production of medical records and expert corroboration, and requested consideration of sanctions less severe than the striking of defenses. (A.6, at 10:15-19:24). Respondent argued that Petitioner’s initial noncompliance prejudiced the presuit investigation and warranted striking its defenses. However, no witnesses testified, and no exhibits were marked during the hearing. (A.6, at 13:10-14:13). In response, Petitioner’s counsel argued that the statutory sanction was discretionary and that the lower court should consider the prejudice attributable to the noncompliance, Petitioner's

subsequent compliance, and the availability of lesser sanctions. Counsel further emphasized that Respondent had completed renewed presuit proceedings and reached a settlement with Dr. Mameniskis, leaving only derivative claims against Petitioner. (A.6, at 12:21-13:7; 14:14-15:1). Counsel also proposed monetary sanctions as an alternative to striking Petitioner's defenses, including reimbursement of additional expenses attributable to the original noncompliance. (A.6, at 16:1-18; 18:11-24).

During the hearing, Petitioner's counsel specifically identified the January 17, 2023 correspondence regarding the medical records, and Respondent's counsel acknowledged receiving the records. (A.6, at 31:15-32:8). The lower court also questioned whether any claim of independent negligence remained against Petitioner. Petitioner's counsel identified the four counts in the operative Complaint, explaining that Count I asserted negligence against Dr. Mameniskis and that Counts II, III, and IV sought to impose vicarious liability upon Petitioner based upon actual agency, apparent agency, and joint venture. (A.6, at 35:19-36:24). Thus, the lower court was expressly advised that Respondent's remaining claims against Petitioner were exclusively derivative of Dr. Mameniskis' alleged negligence before ruling on the Motion. (A.6, at 35:11–36:21).

Despite Petitioner's argument, the lower court granted Respondent's Motion and entered the Order, presently under review, on September 14, 2026. Following its announcement that Respondent's Motion would be granted, the lower court directed Respondent's counsel to prepare a proposed order and stated that it was adopting Respondent's arguments, including the prejudice discussed during the hearing. (A.6, at 40:19-23).

On September 14, 2026, the lower court entered its Order on Motion to Strike ("Order"), granting Respondent's Motion. (A.5). In the Order, the lower court found that Petitioner failed to timely comply with its statutory presuit obligations, including the production of medical records, participation in presuit discovery, and the provision of medical expert corroboration. The lower court further determined that Petitioner's noncompliance was not attributable to excusable neglect and that Respondent suffered prejudice. (A.5). In reaching its determination, the lower court distinguished *De La Torre v. Orta*, 785 So. 2d 553 (Fla. 3d DCA 2001), and rejected lesser sanctions as insufficient. (A.5).

The lower court further ordered that "[t]his matter will proceed to trial solely on the issue of damages." (A.5). Respondent's Motion sought to strike Petitioner's affirmative defenses, however, the Order did not expressly enter a liability default or independently analyze the underlying allegations of

negligence and vicarious liability. By ordering a trial on damages only, the lower court effectively treated those disputed allegations as established, despite Petitioner's express denials.

It is from this September 14, 2026 Order that Petitioner seeks certiorari review.

NATURE OF RELIEF SOUGHT

Petitioner, Avana, seeks the issuance of a Writ of Certiorari quashing the trial court's Order rendered on September 14, 2026, which granted the *Motion to Strike Defendant's Defenses for Failure to Comply with Statutory Presuit Obligations*.

ARGUMENT

Certiorari jurisdiction requires a petitioner to demonstrate the trial court's order constituted (1) a departure from the essential requirements of the law; (2) resulting in material injury for the remainder of the case; and (3) cannot be corrected on postjudgment appeal. *Bd. of Trs. of the Internal Improvement Tr. Fund v. Am. Educ. Enters., LLC*, 99 So. 3d 450, 454 (Fla. 2012) (citing *Reeves v. Fleetwood Homes of Fla., Inc.*, 889 So. 2d 812, 822 (Fla. 2004)).

I. THE LOWER COURT DEPARTED FROM THE ESSENTIAL REQUIREMENTS OF LAW BY IMPOSING THE ULTIMATE SANCTION OF

STRIKING DEFENSES WITHOUT APPLYING THE DISCRETIONARY FRAMEWORK GOVERNING CHAPTER 766.

A. <u>Chapter 766 Authorizes Discretionary Sanctions for Presuit Noncompliance but Does Not Mandate the Automatic Striking of Defenses.</u>

Chapter 766, Florida Statutes, establishes a presuit procedure intended to encourage the early resolution of meritorious medical malpractice claims and discourage frivolous claims and defenses. *Kukral v. Mekras*, 679 So. 2d 278, 284 (Fla. 1996). As recognized by the Florida Supreme Court, the statutory requirements are designed to ensure that medical negligence claims and defenses are properly investigated before litigation proceeds. The Legislature has also established that while compliance with these procedures is required there are distinctions between the obligations imposed upon the parties and sanctions available when those obligations are not satisfied.

Florida's medical malpractice statutory scheme (Chapter 766, Florida Statutes) was intended to address a legitimate legislative policy decision relating to medical malpractice claims, and established a process intended to promote the settlement of meritorious claims at an early stage without the necessity of a full adversarial proceeding. *Williams v. Campagnulo*, 588 So.

2d 982 (Fla. 1991). The Florida Supreme Court has held that Florida's medical negligence statutory scheme serves a valid legislative purpose in ensuring the protection of public health by assuring the availability of adequate medical care. *Pinillos v. Cedars of Lebanon Hosp. Corp*., 403 So. 2d 365 (Fla. 1981).

The preliminary phase of Chapter 766 requires both claimant and defendant to conduct a reasonable investigation corroborated by a verified written medical expert opinion. *See* §§ 766.104(1), 766.203(2)–(3), 766.205, Fla. Stat. The requirement of a corroborating expert opinion serves judicial economy by preventing baseless claims and defenses. *See Archer v. Maddux*, 645 So. 2d 544 (Fla. 1st DCA 1994); *Stebilla v. Mussallem*, 595 So. 2d 136, 139 (Fla. 5th DCA 1992). Section 766.203(2) provides:

> Prior to issuing notification of intent to initiate medical negligence litigation pursuant to s. 766.106, the claimant **shall** conduct an investigation to ascertain that there are reasonable grounds to believe that: (a) Any named defendant in the litigation was negligent in the care or treatment of the claimant; and (b) Such negligence resulted in injury to the claimant. Corroboration of reasonable grounds to initiate medical negligence litigation **shall** be provided by the claimant's submission of a verified written medical expert opinion from a medical expert as defined in s. 766.202(6), at the time the notice of intent to initiate litigation is mailed, which statement shall corroborate reasonable grounds to support the claim of medical negligence by a verified written medical expert opinion.

(emphasis added).

For purposes of section 766.203, "investigation" means "that an attorney has reviewed the case against each and every potential defendant and has consulted with a medical expert and has obtained a written opinion from said expert. *See* Fla. Stat. § 766.202(5). Section 766.106(3)(a), Florida Statutes, requires a prospective defendant to investigate a claim during the ninety (90) day presuit period and provides that an unreasonable failure to comply justifies dismissal of claims or defenses. Section 766.106(3)(c) separately addresses a prospective defendant's failure to respond to a Notice of Intent, providing that the failure to respond within ninety days constitutes a final rejection of the claim. §766.106(3)(a) also states that "[u]nreasonable failure of any party to comply with this section justifies dismissal of claims or defenses." *Id*. Similarly, §766.203(3), Fla. Stat. requires a defendant's response to the notice of intent to include the submission of a verified written medical expert opinion from a statutorily qualified medical expert to corroborate reasonable grounds for lack of negligent injury sufficient to support a denial of negligent injury.

However, the Third District has expressly recognized that even unreasonable failure does not necessarily warrant the ultimate sanction herein. In *Wainscott v. Rindley*, 610 So. 2d 649, 650–51 (Fla. 3d DCA 1992),

the court held that noncompliance with presuit discovery does not mandate dismissal of a claim and that the sanction must be evaluated in light of the circumstances. Likewise, in *Pagan v. Smith*, 705 So. 2d 1034, 1035–36 (Fla. 3d DCA 1998), the Third District reversed an order striking a medical defendant's pleadings where the defendant completed the required investigation and supplied expert corroboration after litigation commenced.

Further, under Section 766.106(6)(a), Florida Statutes, and Florida Rule of Civil Procedure 1.650, a party's unreasonable failure to make discoverable information available during informal presuit discovery constitutes grounds for dismissal of claims or defenses. *See also* § 766.106(7), Fla. Stat. (providing that failure to cooperate in good faith during presuit investigation may ground the striking of claims or defenses). Section 766.106(7) provides that failure to cooperate during the presuit investigation may constitute grounds for striking a claim or defense. However, neither Section 766.106 nor Rule 1.650 mandates the automatic entry of an extreme and decisive sanction of striking pleadings without a rigorous evaluation of proportionality, prejudice, and less severe alternatives.

After the completion of the pre-suit investigation and informal discovery, a party may request the court to determine whether an opposing party's claim or denial rests on a reasonable basis. Section 766.206 states:

(1) After the completion of pre-suit investigation by the parties pursuant to s. 766.203 and any discovery pursuant to s. 766.106, any party may file a motion in the circuit court requesting the court to determine whether the opposing party's claim or denial rests on a reasonable basis.

(2) **If the court finds that the notice of intent to initiate litigation mailed by the claimant does not comply with the reasonable investigation requirements** of ss. 766.201-766.212, **including a review of the claim and a verified written medical expert opinion by an expert witness** as defined in s. 766.202, or that the authorization accompanying the notice of intent required under s. 766.1065 is not completed in good faith by the claimant, **the court shall dismiss the claim**, and the person who mailed such notice of intent, whether the claimant or the claimant's attorney, is personally liable for all attorney's fees and costs incurred during the investigation and evaluation of the claim, including the reasonable attorney's fees and costs of the defendant or the defendant's insurer.

(3) **If the court finds that the response mailed by a defendant rejecting the claim is not in compliance with the reasonable investigation requirements** of ss. 766.201-766.212, including a review of the claim and a verified written medical expert opinion by an expert witness as defined in s. 766.202, **the court shall strike the defendant's pleading**. The person who mailed such response, whether the defendant, the defendant's insurer, or the defendant's attorney, shall be personally liable for all attorney's fees and costs incurred during the investigation and evaluation of the claim, including the reasonable attorney's fees and costs of the claimant.

(emphasis added).

Section 766.206(3), Florida Statutes, separately allows for the mandatory striking of a defendant's pleading where the court determines that a written response rejecting a claim fails to comply with the statutory reasonable investigation requirements. However, Respondent's Motion did not seek a determination under §766.206(1) concerning the reasonableness of Petitioner's investigation.

While total noncompliance or frivolous positions may justify sanctions, striking a party's defenses is an extraordinary remedy. *See McPherson v. Phillips*, 877 So. 2d 755, 758 (Fla. 4th DCA 2004). Statutory noncompliance does not automatically strip a court of its obligation to exercise discretion, nor does it compel immediate dismissal of defenses. Here, the lower court considered prejudice and availability of lesser sanctions, but the issue is whether the circumstances justified the relief imposed which eliminated the requirement that Respondent prove the underlying negligence and the requisite basis for imposing vicarious liability.

In *McPherson v. Phillips*, 877 So. 2d 755 (Fla. 4th DCA 2004), the Fourth District addressed a physician's failure to respond to a notice of intent and presuit discovery. Despite the physician's noncompliance, the court affirmed the refusal to strike his pleadings, recognizing that such a sanction is an extraordinary remedy reserved for extreme circumstances. The

decision makes clear that statutory noncompliance does not automatically justify eliminating a party's defenses.

Respondent's Motion was based upon Petitioner's failure to produce medical records, respond to the Notice of Intent, and comply with the presuit investigation requirements of Chapter 766. Respondent alleged prejudice arising from those failures and requested that the lower court strike Petitioner's affirmative defenses or impose other appropriate sanctions, including attorneys' fees and costs. (A.3 at ¶¶ 32-33). Petitioner opposed the requested relief, acknowledged the original presuit deficiencies, and presented evidence that the medical records had subsequently been furnished immediately upon initiation of litigation, presuit discovery responses had been served in good faith to cure the potential defect(s), and a verified written medical expert opinion had been obtained. Petitioner also argued that the statutory provisions did not mandate the striking of its defenses and that lesser sanctions remained available. (A.4 Ex. A-B).

Nevertheless, the lower court granted Respondent's Motion and directed that the action proceed solely on the issue of damages. (A. 5). While Petitioner acknowledged the initial failure to timely respond to Respondent's medical records request and Notice of Intent, that acknowledgment did not eliminate the lower court's obligation to consider Petitioner's subsequent

compliance, the prejudice attributable to the violation, and the availability of less severe sanctions. The lower court's Order states that Respondent suffered prejudice primarily in connection with the loss of the opportunity to complete the presuit investigation before filing suit and the resulting burden of litigation. (A.5). The lower court did not identify a particular claim or defendant lost because of Petitioner's noncompliance, nor did it establish that Respondent remained unable to investigate or pursue her claims after receiving the medical records in January 2023.

Moreover, Respondent subsequently engaged in discovery, participated in mediation, completed renewed presuit proceedings with Dr. Mameniskis, and ultimately settled her direct claim against the physician alleged to have caused her injuries. These circumstances were directly relevant to whether the initial noncompliance resulted in prejudice of sufficient magnitude to warrant eliminating Petitioner's defenses.

Accordingly, the fact that a party has failed to comply with Chapter 766 does not, standing alone, require the court to strike its defenses. The statute distinguishes between the existence of a violation and the consequences that may follow, leaving the trial court discretion under the applicable sanctions provisions. The issue, therefore, is not whether Petitioner's initial noncompliance warranted sanctions, but whether Chapter 766 authorized

the lower court to impose this extraordinary remedy without adequately establishing why lesser sanctions would be insufficient. There was a requirement to consider whether the severity of the sanctions was justified by the circumstances. And while Chapter 766 allows the lower court to impose sanctions for this noncompliance, the question remains whether the statute itself justified the particular sanction imposed here by the lower court. Striking Petitioner's defenses and effectively determining liability without a trial on the merits was a departure from the essential requirements of the law.

B. Florida Statute, Section 766.206(3)'S Mandatory Sanction For A Deficient Written Presuit Rejection Does Not Apply To Petitioner's Failure To Respond.

Chapter 766 expressly distinguishes between a prospective defendant's failure to respond to a Notice of Intent and submitting of a written rejection that fails to satisfy the statutory investigation requirements.

Under Section 766.106(3)(c), Florida Statutes, a prospective defendant's failure to respond within the ninety (90) day presuit period is deemed a final rejection of the claim. By contrast, §766.206(3) provides for the mandatory striking of a defendant's pleading when a response mailed by the defendant rejecting the claim fails to comply with the reasonable

investigation requirements, including the requisite verified written medical expert opinion. This distinction is significant because the Legislature has expressly prescribed different consequences for these violations. For example, §766.106(3)(c) addresses the failure to respond and establishes a rejection by operation of law, whereas § 766.206(3) imposes a mandatory sanction for a deficient written rejection.

Here, Petitioner did not mail a deficient written rejection during the original presuit period. Rather, its initial silence resulted in a deemed rejection by operation of law under §766.106(3)(c). Petitioner subsequently completed its investigation and served a written denial supported by the verified medical expert opinion of George Pope, M.D.. (A.4 Ex.B). Petitioner pointed out this distinction in its Response to the Motion and maintained that its failure to respond was governed by § 766.106(3)(c), rather than the mandatory sanction in § 766.206(3). (A.4 at ¶¶ 16-18). Thus, the statute, as applicable, did not require the striking of its defenses merely because the original presuit period expired without a written rejection.

Moreover, Florida courts have recognized that presuit deficiencies in compliance with Chapter 766 may be remedied after litigation has commenced and that even an unreasonable failure to comply with Chapter 766 does not automatically justify striking a party's defenses. See *Kukral v.*

Mekras, 679 So. 2d 278 (Fla. 1996); *De La Torre v. Orta*, 785 So. 2d 553 (Fla. 3d DCA 2001); *Wainscott v. Rindley*, 610 So. 2d 649, 650 (Fla. 3d DCA 1992). Given that Petitioner's initial nonresponse was governed by § 766.106(3)(c) and subsequently supported, an alleged presuit noncompliance was subject to the *discretionary* sanction provisions of Section 766.106(6) and (7) and Florida Rule of Civil Procedure 1.650. By granting the Motion and directing the case proceed solely on damages, the lower court imposed a sanction that went beyond the relief expressly requested in the Motion and effectively determined liability on disputed claims. (A.3 at ¶ 33; A.5). Therefore, the Petitioner is not merely challenging the lower court's assessment of the evidence supporting its decision, but the legal basis and scope of the sanction imposed under Chapter 766.

C. The Lower Court's Order is Inconsistent with the Controlling Principles in *De La Torre v. Orta.*

In *De La Torre v. Orta*, 785 So. 2d 553 (Fla. 3d DCA 2001), the Third District addressed similar circumstances as here. Florida courts repeatedly recognize that striking claims or defenses is an extraordinary sanction that should be used sparingly. In determining the appropriate remedy, the Court must consider the particular circumstances and the prejudice, if any,

sustained by the opposing party. *De La Torre v. Orta*, 785 So. 2d 553 (Fla. 3d DCA 2001); *McPherson v. Phillips*, 877 So. 2d 755 (Fla. 4th DCA 2004).

In *De La Torre*, the defendant physician received but did not respond to either a presuit medical records request or a Notice of Intent. After suit was filed, the defendant retained counsel, obtained a qualified medical expert's review, and filed an affidavit corroborating that the defendant met the standard of care. The trial court nevertheless struck the defendant's pleadings and entered partial summary judgment on liability. The Third District reversed. *Id.* at 555–56. The Third District held that the defendant's post-suit compliance was not categorically too late, and explained that the sanction must depend upon the circumstances, including the prejudice actually suffered by the plaintiff. Because the defendant eventually produced an expert affidavit demonstrating a nonfrivolous medical defense, striking the defenses was excessive. *Id.* The Third District in *De La Torre* recognized that lesser sanctions remain available, and a court may impose monetary sanctions and compensation for additional expenses caused by the noncompliance.

Similarly, in *Pagan v. Smith*, 705 So. 2d 1034 (Fla. 3d DCA 1998), the Third District reversed an order striking a defendant's pleadings for presuit noncompliance and directing that the case proceed to trial solely on

damages. This case shows that presuit noncompliance does not automatically justify the sanction here. While Petitioner's compliance occurred considerably later, the parties engaged in ongoing settlement discussions and mediation, and the case was subsequently stayed for Dr. Mameniskis to complete presuit. (A.4 at ¶¶ 4-5, 10; A.4 Exs. A-B; A.6 at 15:10-17, 25:1-7).

Likewise, in *Morris v. Muniz*, 252 So. 3d 1143, 1158–59 (Fla. 2018), the Florida Supreme Court held that it would be improper to dismiss an action for failure to comply with discovery where there has been no prejudice suffered. *Id.* at 1159. Although *Morris* involved a claimant's failure to comply with presuit discovery under §766.205(2), its analysis of prejudice further supports consideration of the consequences of presuit noncompliance prior to imposing extreme sanctions.

The circumstances presented here support the application of those same principles. While Petitioner initially failed to comply with its presuit obligations due to counsel oversight, it subsequently furnished the requested medical records in January 2023. (A.4; A.6 at 31:15-33:8). Later, on December 2, 2025, Petitioner served responses to the outstanding presuit discovery requests, together with responsive documents. (A.4). The parties also participated in discovery, settlement discussions, and mediation

thereafter. During the pendency of litigation, Respondent and Dr. Mameniskis engaged in a 90 day presuit period during which the lower court case was stayed. Respondent ultimately settled her direct claims against Dr. Mameniskis, the underlying tortfeasor. Although the stay did not re-open Petitioner's presuit period, these circumstances were relevant to the court's consideration of the consequences of Petitioner's initial noncompliance.

During the pre-suit period between Respondent and Dr. Mameniskis, Petitioner asked to participate because the remaining claims against it depended upon the physician's alleged negligence. Respondent declined that request. (A.4 at ¶ 4; A.6 at 15:10-17). Although Respondent was not required to include Petitioner in those proceedings, the physician's subsequent settlement showed that Respondent was able to investigate, pursue, and resolve her direct claim concerning the underlying medical treatment.

In her Motion, Respondent alleged that Petitioner's conduct impaired her ability to investigate the claim, determine insurance coverage, ascertain the physician's relationship with Petitioner, identify other potentially responsible parties, retain experts, and pursue settlement before litigation. (A.3 at ¶ 32). However, Respondent obtained the requested medical records shortly after commencing the action, identified and pursued the alleged

primary tortfeasor, and was properly informed of the lack of insurance coverage. Further, Respondent participated in litigation and mediation and ultimately reached a settlement with the physician. Thus, the subsequent production of records, completion of presuit proceedings with the physician, and settlement of the underlying negligence claim were material considerations in determining whether striking Petitioner's defenses remained necessary or whether lesser sanctions could address the consequences of the original violation.

The lower court relied on *De La Torre* in its Order and distinguished it primarily based upon Petitioner's noncompliance and the fact that its medical expert affidavit was served after the expiration of the statute of limitations. (A.5). While expiration of the statute of limitations can be considered by the lower court, *De La Torre* did not establish that the expiration of the statute of limitations was an absolute deadline for curing presuit deficiencies. Rather, the Third District recognized that post-suit compliance remains relevant and that the selection of a sanction depends upon the circumstances presented. *Id*. at 556.

The lower court was also presented with Petitioner's subsequent compliance efforts. The evidence showed that on December 2, 2025, after the stay was lifted, Petitioner furnished responses to Respondent's presuit

discovery requests, and then served a written denial supported by the verified medical expert opinion of George Pope, M.D. (A.4, Exs.A-B). These subsequent efforts did not excuse Petitioner's original noncompliance, but they were relevant to the consequences of the noncompliance and sanctions authorized under Chapter 766. The lower court's determination that Petitioner's conduct warranted sanctions did not excuse the requirement for the relief granted to be supported under Chapter 766.

The lower court identified prejudice arising principally from Respondent's inability to complete her presuit investigation before filing suit and the resulting burden of litigation. (A.5). Although those circumstances supported consideration of sanctions, the applicable statutory provisions did not require the elimination of every disputed issue of liability. The distinction is significant because the lower court did not merely restrict Petitioner's ability to assert particular defenses; it directed that the action proceed solely on damages.

The lower court's Order did not identify a claim Respondent was unable to pursue, an additional defendant rendered unavailable, or evidence permanently lost because of Petitioner's original noncompliance. (A.5). At the hearing, Petitioner's counsel proposed monetary sanctions to compensate Respondent for possible additional expenses attributable to the

original violations. (A.6 at 16:1-18, 18:11-24). The lower court rejected that alternative but did not explain why compensation would be insufficient to address that aspect of the claimed prejudice.

Ultimately, Petitioner does not ask this Court to re-weigh the evidence of prejudice. Rather, Petitioner challenges the legal basis and scope of the sanctions imposed under Chapter 766, as well as the lower court's ruling on liability. The remaining claims against Petitioner are solely derivative, based upon vicarious liability for Dr. Mameniskis' alleged negligence. Although Respondent settled her negligence claims against Dr. Mameniskis, the settlement did not establish that he was in fact negligent or that his alleged negligence caused Respondent's injuries.

By striking Petitioner's defenses and directing that the case proceed solely on the issue of damages, the lower court relieved Respondent of her burden of proving the essential elements of her remaining claims. By doing this, the lower court essentially imposed relief beyond striking of affirmative defenses and resolved disputed issues of liability without separately establishing the legal basis for that result. Petitioner asserts this exceeded the sanctions justified under the applicable provisions of Chapter 766 and constituted a departure from the essential requirements of law.

II. A TRIAL ON DAMAGES ONLY IMPROPERLY RESOLVES UNADJUDICATED LIABILITY ISSUES IN AN ACTION BASED EXCLUSIVELY UPON DERIVATIVE CLAIMS.

A. Respondent's Remaining Claims Require Proof of the Underlying Medical Negligence and a Legally Sufficient Basis for Vicarious Liability.

The lower court's September 14, 2026 Order did not just sanction Petitioner, but it essentially established liability against Petitioner without a determination of the essential elements of Respondent's remaining causes of action by directing that the underlying action proceed solely on damages. (A.5).

The operative Complaint contains four counts: Count I for medical negligence against Dr. Mameniskis; Count II against Petitioner based upon actual agency; Count III against Petitioner based upon apparent agency; and Count IV against Petitioner based upon an alleged joint venture. No independent medical negligence claim was asserted against Petitioner. (A.1 at ¶¶ 33-53). After settling with Dr. Mameniskis, Respondent's remaining claims are derivative against Petitioner. However, these remaining claims depend upon Dr. Mameniskis' alleged negligence.

Florida law recognizes that a medical facility may be held vicariously liable for a physician's negligence under established agency principles where the necessary elements are proven. See *Ramos v. Preferred Medical Plan, Inc.*, 842 So. 2d 1006, 1010–11 (Fla. 3d DCA 2003); *Roessler v. Novak*, 858 So. 2d 1158, 1161–62 (Fla. 2d DCA 2003).

In *Guadagno v. Lifemark Hospitals of Florida, Inc.*, 972 So. 2d 214, 218 (Fla. 3d DCA 2007), the Third District recognized that apparent agency requires conduct attributable to the purported principal creating the appearance of an agency relationship. Thus, the existence of such a relationship presents a substantive issue that must be established, rather than assumed. However, the existence of an actual or apparent agency relationship is not presumed merely because a procedure occurred at a facility. Liability depends upon the allegations and evidence establishing the requisite relationship.

Petitioner expressly denied the allegations concerning Dr. Mameniskis' negligence, causation, and the alleged agency and joint venture relationships. (A.2 at ¶¶ 33–53). Even though Respondent settled her direct negligence claim against the physician, that settlement did not establish that he breached the standard of care, caused Respondent's injuries, or acted in a relationship giving rise to Petitioner's vicarious liability. These allegations

remained disputed under the operative pleadings and dismissal of the physician following settlement therefore did not relieve Respondent of proving the essential elements of the remaining derivative claims.

B. The Lower Court Improperly Directed a Trial on Damages Only Despite Disputed Issues of Liability.

Florida Rule of Civil Procedure 1.110 distinguishes between denials of the allegations asserted in a complaint and affirmative defenses that raise additional matters in avoidance of liability. A denial contests the truth or legal sufficiency of an essential allegation, whereas an affirmative defense ordinarily raises a separate matter that defeats or limits an otherwise established claim. See Fla. R. Civ. P. 1.110(c), (d). The lower court's ruling fails to distinguish between the striking of affirmative defenses and the adjudication of allegations expressly denied in a defendant's responsive pleading.

Petitioner filed its Answer and Affirmative Defenses on July 22, 2024, along with twenty-two (22) affirmative defenses. Petitioner separately denied the allegations supporting Respondent's causes of action, including the physician's alleged negligence, causation, and the claimed agency and joint venture relationships. (A.2 at ¶¶ 33-53). Those denials directly contested the elements Respondent ordinarily would be required to prove.

Respondent's Motion requested that the lower court strike Petitioner's affirmative defenses or impose other appropriate sanctions, including attorneys' fees and costs. (A.3 at ¶ 33). The Motion's "WHEREFORE" clause referred more broadly to striking defenses and a Motion to Dismiss, yet it did not expressly request a default or a trial solely on damages. At the August 6, 2026 hearing, Respondent's counsel characterized the Motion more broadly as seeking to strike Petitioner's pleadings and defenses. (A.6 at 5:19-23).

The lower court ultimately concluded that striking Petitioner's pleadings was warranted based upon its findings of presuit noncompliance. (A.5). However, the Order went beyond striking Petitioner's defenses by directing that the matter proceed to trial solely on the issue of damages, without clearly specifying the effect of that ruling upon Petitioner's separately plead denials. *Id.* This has basically relieved Respondent from having to prove the underlying tortfeasor's negligence, and the relationship required to hold Petitioner vicariously liable. Those allegations remained expressly denied in Petitioner's Answer, and the physician's settlement had not established them.

Petitioner opposed the striking of its defenses and expressly cautioned that such relief would be tantamount to a liability default. (A.4 at ¶ 9). During the hearing, Petitioner's counsel likewise identified the severe consequences

of eliminating the defenses of the sole remaining Defendant when the causes of action were exclusively derivative. (A.6 at 19:19-22, 38:14-25). Accordingly, Petitioner maintains that the lower court departed from the essential requirements of law by altering a striking of defenses into a determination of liability, without establishing the legal or procedural basis for disregarding Petitioner's remaining denials and directing that the action proceed on damages alone.

The statutory authority to strike defenses should not be interpreted as automatically permitting the elimination of every contested element of Respondent's causes of action. The disproportionate consequences of the Order underscored the importance of the lesser remedies discussed in *De La Torre* where the circumstances did not warrant such an extraordinary sanction. Here, the lower court imposed a similar result despite Petitioner's subsequent compliance, the absence of any adjudication establishing the physician's negligence, and the availability of remedies directed to the consequences of the original presuit violation. The lower court's findings concerning presuit noncompliance and prejudice did not separately establish Dr. Mameniskis' negligence or the existence of an agency or joint venture relationship with Petitioner. The Order nevertheless directed that the case

proceed on damages, without identifying a legal basis for treating those disputed issues as proven.

CONCLUSION

The trial court departed from the essential requirements of law in granting Respondent's Motion by imposing the most severe sanction available under Chapter 766, Florida Statutes, and directing that the case proceed solely on damages. Section 766.106(3)(c) provides that a failure to timely respond to a Notice of Intent constitutes a deemed rejection, while Sections 766.106(6) and (7) authorize, but do not mandate, the striking of claims or defenses for failure to cooperate with presuit discovery. The Legislature did not require that every violation result in the striking of defenses. Rather, the appropriate sanction must be determined under the circumstances of the particular case, including subsequent compliance, the prejudice resulting from the violation, and the availability of lesser remedies.

In the instant case, Petitioner subsequently provided the requested medical records, responded to presuit discovery, and provided medical expert corroboration. (A.4; A.6 at 16:3-18; 19:4-11; 31:15-33:8; 35:1-7). Respondent also completed the presuit process and settled with Dr. Mameniskis. While this does not excuse Petitioner's original noncompliance, these circumstances were relevant in determining whether the prejudice

alleged by Respondent warranted striking Petitioner's defenses, where lesser sanctions could address the consequences of the violation. Despite this, the lower court imposed the most severe sanction without adequately establishing why its findings of prejudice justified the relief granted or why lesser sanctions were insufficient, contrary to the principles recognized in *De La Torre v. Orta*, 785 So. 2d 553 (Fla. 3d DCA 2001).

In addition, by ordering the case to proceed on damages, the lower court departed from the essential requirements of law and thereby established liability against Petitioner without adjudication of the underlying negligence or the legal basis for imposing vicarious liability. (A.5; A.6). Petitioner's Answer denied those allegations, and the physician's settlement did not prove them, nor his own alleged negligence. The lower court's findings of presuit noncompliance and prejudice did not provide a sufficient legal basis for resolving those disputed issues through the sanction imposed.

Petitioner does not seek reconsideration or a reweighing of the evidence presented herein. Rather, Petitioner challenges the legal basis and consequences of the sanction imposed, which will cause material injury throughout the remaining proceedings that cannot be adequately remedied on post-judgment appeal.

In view of the foregoing, the Petitioner respectfully requests that this Court issue a Writ of Certiorari quashing the Order below, and remand for further proceedings consistent with Chapter 766 and controlling Florida law.

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing document was served via Florida's E-Filing Portal to all counsel on the attached service list this 14 day of October, 2026.

CERTIFICATE OF COMPLIANCE

I HEREBY CERTIFY that this Petition (i) was prepared using Arial 14-point font in accordance with Florida Rule of Appellate Procedure 9.045(b); and (ii) contains 9,315 words and thus does not exceed the 13,000 word count limit set forth in Florida Rule of Appellate Procedure 9.100(g), as calculated by the word-processing system used to prepare this Petition.